

THE HON'BLE SRI JUSTICE A. ABHISHEK REDDY

WRIT PETITION No. 7139 of 2022

ORDER:

Heard learned counsel appearing on behalf of petitioner and learned Government Pleader for Forests appearing on behalf of respondents. With their consent, the present Writ Petition being disposed of at the admission stage itself.

Questioning the action of the respondent No.3 – Conservator of Forests, Khammam Circle, Khammam, rejecting the appeal in proceedings No.1749/2003/M5 dated 03.01.2022, the petitioner has filed the present Writ Petition.

Learned counsel for the petitioner has drawn the attention of this Court to the Rules 4, 5, 6, 7 and 9 of the Telangana State Transit Rules, 1970, to buttress his contention that the official respondents without verifying the factual position have passed the orders in a mechanical manner.

A perusal of the show cause notice dated 29.06.2021 shows that the respondent No.6 – Forest Divisional Officer, Khammam District, Khammam, was of the opinion that on single permit, the petitioner's saw mill was transporting the timber in two vehicles. To the said show cause notice, the petitioner has submitted his explanation on 05.07.2021. Thereafter, the respondent No.6 has issued the proceedings dated 18.09.2021. A reading of the said proceedings discloses that 151 pieces of teak of various sizes, totally 3.750 cubic meters, has been transported in two vehicles. That the respondent No.6 only on the ground that there was no permit for the other vehicle and there was only permit for single vehicle bearing No.TS04 UA 3807 vide permit No.336488, has come to the conclusion that the permit and invoice are not tallying and that the teak sizes being transported are finished sizes or rough sizes and there was only permit for one vehicle. Even though the respondent No.6 has come to the said conclusion, there is nothing on record to show that extra teak

material was seized from the petitioner or that the number of pieces were more than 151 nos, for which, valid invoice is there, or that the total quantity seized is more than 3.750 Cubic Meters.

Even the appellate authority without adhering to the various grounds raised by the petitioner, has passed the order dated 03.01.2022 in a mechanical manner, without verifying as to whether there was any excess teak present or that the teak consisting of more than 151 pieces or more than 3.750 Cubic Meters has been transported by the petitioner in two vehicles or not.

Even though in the counter, it is stated that the petitioner is involved in illegal transportation of timber, there is no material on record to show that any extra teak material was seized which is more than the one shown in the invoice i.e., 151 teak pieces of 3.750 Cubic Meters. If that is the case, the only allegation that will remain against the petitioner is that he

has transported the said quantity in two vehicles. The quantum of punishment that can be imposed for transporting the teak in two vehicles has to be considered duly taking into consideration the explanation submitted by the petitioner, which is obviously missing, in the orders passed by the respondent No.6 and that of the respondent No.3. It appears that the authorities concerned were bent on passing the order holding that the petitioner is transporting more teak than what was permitted without properly verifying the factual aspects. The impugned order does not reveal that any extra material was found i.e., the extra pieces of wood or the extra quantity of wood that was seized by the authorities. In view of the same, both the orders have to be necessarily set aside and the matter be remanded back to the primary authority to pass orders afresh.

Having regard to the above, this Writ Petition is allowed and the orders dated 03.01.2022 and 18.09.2021 passed by the primary and appellate authorities are hereby set aside and the

matter is remanded back to the respondent No.6 for passing orders afresh duly putting the petitioner on notice and giving an opportunity of hearing and taking into consideration the explanation submitted by the petitioner. It is needless to observe that the petitioner is entitled to continue the operation of the saw mill, till such time the fresh orders are passed by the respondent No.6.

Miscellaneous applications, if any pending, shall stand closed. There shall be no order as to costs.

A. ABHISHEK REDDY, J

28th APRIL, 2022.

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